



SPARKLE

Kenya Community Guidelines

Production Draft • Safety, Privacy, Moderation & Platform Conduct

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Important: This document is a platform policy and compliance-design draft, not a legal opinion. It is designed around Kenyan law and regulatory guidance identified in the sources section and should be reviewed by Kenyan counsel before public release.

1. DOCUMENT CONTROL & PUBLICATION STATUS

Document purpose. This policy defines what users may do on Sparkle, what Sparkle may restrict or remove, how reports and appeals work, how privacy and Ghost features interact with moderation, and how the platform is intended to operate consistently with Kenyan constitutional and statutory principles.

Effective today: 21 August 2026. The date is a publication/version date, not a guarantee that every law, regulation, court decision, regulator guidance, app-store rule, or contractual requirement has been exhaustively captured.

Legal review is required before adoption.

Publication state. The Sparkle brand/account identifiers in this draft are based on the project information supplied for this document. No public Sparkle website, domain, support email, phone number, or verified social-media URL was found in the web research used for this document. Those links are therefore deliberately marked TO BE CONFIGURED rather than invented.

Document owners

- Policy owner: Sparkle Team
- Executive owner: Founder & CEO — Don Babu
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Publication rule

Do not publish this PDF as a final legal instrument until the placeholders above are completed, the Terms of Service and Privacy Policy are aligned with it, and Kenyan counsel confirms the final enforcement, data-protection, age-verification and liability language.

2. HOW TO READ THESE GUIDELINES

These Guidelines apply to accounts, profiles, usernames, bios, posts, comments, stories, reactions, likes, follows, messages, group conversations, media uploads, live/interactive features, communities, marketplace activity, links, advertisements, creator activity, Ghost activity and any future Sparkle surface that permits user-generated content.

Where a feature has a separate policy, the stricter applicable rule controls. For example, a message may be subject to both the Messaging Rules and the Child Safety Rules. A seller may be subject to both Community Guidelines and Marketplace Rules.

The words **must**, **must not** and **prohibited** describe mandatory platform rules. **May** describes a discretionary Sparkle action. **Review** means a human or appropriately supervised review process, not an assumption that every automated decision is correct.

3. CORE PRINCIPLES

Safety. Protect users from violence, exploitation, abuse, fraud, harassment and dangerous conduct.

Privacy. Minimise collection and disclosure of personal information and respect private communications and intimate material.

Human dignity. Do not use Sparkle to humiliate, exploit, threaten or dehumanise others.

Expression. Permit lawful opinion, criticism, satire, artistic creativity, academic discussion and political expression subject to lawful and proportionate limits.

Accountability. Ghost, pseudonymous and private modes do not make a user unaccountable to Sparkle.

Proportionality. Enforcement should consider severity, context, intent, history, harm and confidence—not raw report counts alone.

Due process. Users should receive meaningful notice and an appeal/review route where reasonably possible.

Child protection. The safety and best interests of children receive heightened protection.

Transparency. Users should be able to understand major restrictions, what rule was implicated and how to seek review.

Security. Sparkle must design against account takeover, data leakage, abuse of moderation and evasion of safety controls.

4. CONSTITUTIONAL COMPATIBILITY DESIGN

Sparkle is a private service and these Guidelines are not a substitute for the Constitution or Kenyan law. The design objective is to respect constitutional values while exercising a private platform's right to establish reasonable participation rules.

Constitutional principle	Sparkle design response	Operational effect
Article 27 — Equality	Enforcement must not discriminate on protected grounds. Rules should be applied consistently and allow legitimate safety distinctions.	Do not create different punishments because of ethnicity, religion, sex, disability, etc.; use behavior and evidence.
Article 28 — Human dignity	Do not permit humiliation, exploitation, threats, non-consensual intimate exposure or degrading abuse.	Immediate restrictions can be justified for serious dignity harms.
Article 29 — Security	Threats, violence and coercive conduct are prohibited.	High-severity threats can trigger immediate restrictions and escalation.
Article 31 — Privacy	Protect private affairs, personal information and communications.	Doxing, unauthorized intimate media and unnecessary disclosure are prohibited.
Article 33 — Expression	Protect lawful expression, artistic creativity, academic freedom and opinion while excluding constitutionally unprotected categories.	Rules should distinguish disagreement from threats, hate speech, incitement and unlawful harm.
Article 24 — Limitations	Restrictions should be reasonable, justifiable, proportionate and tied to a legitimate purpose.	Use least-restrictive measures where safety can be achieved without unnecessary removal.
Article 35 — Information	Data correction/deletion and access rights inform Sparkle's privacy workflows.	Provide appropriate data-subject request mechanisms.

Legal note: Article 24 requires limitations of rights to be reasonable and justifiable and to consider less restrictive means. This is a design principle, not a declaration that every Sparkle rule is legally valid.

The Constitution source and current Kenya Law text are linked in the Sources section.

5. KEY DEFINITIONS

Adult: A person who is 18 years or older for Sparkle's age-safety controls unless applicable law requires a different treatment.

Child/minor: A person under 18 for the purposes of Sparkle's child-safety framework.

Content: Any text, image, video, audio, live material, link, profile element, reaction or other user-generated material.

Sensitive content: Content that may be mature, disturbing, sexualized, graphic or otherwise unsuitable for general recommendation, even where not prohibited.

Explicit sexual content: Pornographic or explicitly sexual material as defined by Sparkle's policy; prohibited categories are listed below.

Intimate image: A nude, partially nude, sexually explicit or private image/video where the subject has a reasonable expectation of privacy or where distribution is non-consensual.

Ghost: A privacy mode that hides a user's public discoverability or selected identity signals while retaining a real internal account identity for security, moderation and legal processes.

Report: A user-submitted safety or policy complaint about content or conduct.

Strike: A confirmed enforcement event recorded against an account or content item.

Appeal: A request to have a restriction or enforcement decision reconsidered.

Permanent ban: An account-level termination intended to prevent normal use of Sparkle.

High-risk content: Content for which credible evidence suggests a serious or imminent safety, legal, exploitation or platform-integrity risk.

Recommendation: Algorithmic distribution beyond a user's direct audience or an explicit user request.

Organic engagement: Engagement generated by users who can legitimately access content without Sparkle algorithmically amplifying it.

6. COMMUNITY RULES — ENFORCEABLE CATALOGUE

This edition contains **263 numbered operational rules**. The rules are deliberately specific so that Sparkle can translate them into moderation categories, classifier labels, report reasons, enforcement codes and appeal explanations.

Important enforcement principle: a report is an allegation, not a finding. Report volume can increase review priority, but Sparkle should not automatically declare a user guilty because two, ten or twenty people pressed Report.

A. ACCOUNT INTEGRITY

CG-001. Do not create an account using another person's identity without permission.

CG-002. Do not impersonate a public figure, institution, creator, business, university, government office or Sparkle staff member.

CG-003. Do not use deceptive profile information to facilitate fraud or abuse.

CG-004. Do not buy, sell, rent, lease or trade Sparkle accounts.

CG-005. Do not sell or transfer verified status.

CG-006. Do not create accounts solely to evade a prior enforcement action.

CG-007. Do not use automation to mass-create accounts or manipulate account reputation.

CG-008. Do not use stolen credentials or session tokens.

CG-009. Do not attempt to bypass phone, email, age or identity verification.

CG-010. Do not intentionally provide false information during a safety or legal investigation.

CG-011. Keep recovery information secure and current.

CG-012. Do not publish another person's login credentials, recovery codes or authentication secrets.

CG-013. Do not encourage users to surrender passwords, one-time codes or authentication tokens.

CG-014. Do not exploit a security vulnerability for personal gain or harassment.

CG-015. Report suspected account compromise through Sparkle's security channel once configured.

B. HARASSMENT, BULLYING & DIGNITY

CG-016. Do not target a person with repeated unwanted abuse.

CG-017. Do not threaten violence or physical harm.

CG-018. Do not encourage another person to harm themselves.

CG-019. Do not coordinate harassment against an individual.

CG-020. Do not use slurs or dehumanising attacks against protected groups.

CG-021. Do not repeatedly contact a person after a clear request to stop where the conduct is abusive or threatening.

CG-022. Do not publish humiliating private material to shame a person.

CG-023. Do not encourage followers to swarm, threaten or harass another account.

CG-024. Do not use Ghost features to evade a block and continue harassment.

CG-025. Do not create multiple accounts to continue harassment after restriction.

CG-026. Do not stalk or systematically monitor a person in a way that creates fear or serious distress.

CG-027. Do not use profile visits, search, messages or story views to facilitate harassment.

CG-028. Do not weaponise reporting tools against a target.

CG-029. Do not celebrate or encourage real-world violence against identifiable people.

CG-030. Do not use edited media to falsely portray a private person in a degrading or threatening context.

C. HATE, INCITEMENT & DISCRIMINATION

CG-031. Do not advocate violence against people because of ethnicity, race, religion, sex, disability, nationality or another protected characteristic.

CG-032. Do not encourage ethnic or religious violence.

CG-033. Do not call for the expulsion or physical harm of a protected group.

CG-034. Do not publish propaganda intended to incite violence.

CG-035. Do not use Sparkle to organise discriminatory attacks.

CG-036. Do not praise mass violence against a protected group.

CG-037. Do not use dehumanising comparisons to encourage harm.

CG-038. Do not target children or students with discriminatory abuse.

CG-039. Do not use stereotypes as a pretext for threats or exclusion.

CG-040. Do not coordinate discriminatory campaigns through groups, comments or messages.

CG-041. Political criticism is allowed when it does not cross into prohibited threats, incitement or hate.

CG-042. Religious criticism and debate are allowed; threats and incitement are not.

CG-043. Academic discussion of controversial subjects is allowed when presented in a lawful and non-abusive manner.

CG-044. Context matters: quoting or condemning harmful language is not automatically equivalent to endorsing it.

D. SEXUAL CONTENT & NUDITY

CG-045. Do not upload or distribute sexual content involving a child.

CG-046. Do not request, solicit, trade or facilitate sexual content involving a child.

CG-047. Do not distribute intimate images without the subject's consent.

CG-048. Do not threaten to publish intimate material to obtain money, sex, silence or another benefit.

CG-049. Do not use Sparkle to advertise sexual exploitation or trafficking.

CG-050. Do not publish explicit sexual acts where Sparkle's current product policy prohibits them.

CG-051. Do not use nudity to target, humiliate or sexually harass another person.

CG-052. Do not upload a private person's intimate image simply because the image exists elsewhere online.

CG-053. Do not create or distribute non-consensual sexual deepfakes.

CG-054. Do not claim consent on behalf of another person when you do not have authority to do so.

CG-055. Do not post sexual content with a minor-looking subject even if you claim the person is an adult.

CG-056. Do not use sexually explicit content as a profile photo, username, cover image or other surface that Sparkle has designated as general-audience.

CG-057. Do not send unwanted sexual images to another user.

CG-058. Do not repeatedly send sexual messages after the recipient has rejected or blocked the interaction.

CG-059. Do not use sexual content to facilitate harassment, coercion, blackmail or exploitation.

CG-060. Where Sparkle permits limited mature material, it may be subject to age gating, sensitive labels, recommendation limits and other distribution controls.

CG-061. Consensual adult content, if permitted by Sparkle's product policy, remains subject to all other rules including privacy, trafficking, fraud, harassment and non-consensual-media rules.

CG-062. Users must not assume that marking content '18+' makes otherwise prohibited content permissible.

CG-063. Sparkle may remove or restrict sensitive material even when it is not illegal if necessary to protect users, minors, app-store compliance or platform safety.

CG-064. Do not use captions, hashtags, thumbnails or links to circumvent a media restriction.

E. CHILD SAFETY

CG-065. Sparkle treats child safety as a highest-priority category.

CG-066. Do not sexualise children.

CG-067. Do not request sexual images from a child.

CG-068. Do not send sexual images to a child.

CG-069. Do not groom a child for sexual or exploitative purposes.

CG-070. Do not facilitate meetings with a child for sexual exploitation.

CG-071. Do not threaten a child with disclosure of private material.

CG-072. Do not expose a child's personal information unnecessarily.

CG-073. Do not publish identifying information about a child in a vulnerable or abuse-related context.

CG-074. Do not use Sparkle to sell or exchange child sexual abuse material.

CG-075. Do not use disappearing messages or Ghost features to evade child-safety enforcement.

CG-076. Do not instruct a child to delete evidence of abuse.

CG-077. Do not recruit children into exploitative work.

CG-078. Do not encourage children to bypass parental, guardian or platform safety controls.

CG-079. Report suspected child exploitation immediately through Sparkle's designated safety mechanism once configured.

CG-080. Sparkle may preserve relevant evidence and escalate serious child-safety matters to competent authorities where required or permitted by law.

CG-081. Age verification and child-safety controls may be strengthened as Sparkle's risk profile changes.

CG-082. Users must not falsely report an adult as a child to trigger enforcement.

CG-083. Accounts may be restricted while age or safety status is being investigated.

CG-084. Child-safety decisions may use a higher urgency and lower tolerance for uncertainty than ordinary content moderation.

F. PRIVACY, DOXXING & PERSONAL DATA

CG-085. Do not publish another person's phone number without a lawful and appropriate basis.

CG-086. Do not publish private home addresses.

CG-087. Do not publish private email addresses when doing so creates a safety or harassment risk.

CG-088. Do not publish passwords, PINs, OTPs, API keys or access tokens.

CG-089. Do not publish private financial account information.

CG-090. Do not expose private medical or sexual-health information without an appropriate basis.

CG-091. Do not publish a person's live location for the purpose of facilitating harm.

CG-092. Do not reveal private school, hostel or workplace details to facilitate stalking.

CG-093. Do not expose a private conversation outside the participants without appropriate authority or consent, subject to lawful reporting exceptions.

CG-094. Do not use Sparkle search or Ghost features to stalk or profile people for harm.

CG-095. Do not scrape personal data at scale for spam, harassment or resale.

CG-096. Do not upload contact lists or personal databases unless Sparkle has a lawful, disclosed purpose and required permissions.

CG-097. Do not use another person's personal data to pass verification.

CG-098. Respect requests to correct or remove inaccurate personal information where applicable.

CG-099. Sparkle may retain limited records necessary for security, fraud prevention, legal compliance and enforcement.

G. FRAUD, SCAMS & FINANCIAL ABUSE

CG-100. Do not impersonate banks, mobile-money providers, Sparkle Pay or other financial institutions.

CG-101. Do not ask users for passwords, PINs, OTPs or recovery codes.

CG-102. Do not run fake investment schemes.

CG-103. Do not promise guaranteed returns from investments or trading.

CG-104. Do not use Sparkle to facilitate pyramid or fraudulent referral schemes.

CG-105. Do not publish fake payment confirmations.

CG-106. Do not manipulate escrow, marketplace or payment systems.

CG-107. Do not use stolen cards or accounts.

CG-108. Do not create fake stores or sellers to obtain deposits.

CG-109. Do not intentionally misrepresent goods or services.

CG-110. Do not use chargeback fraud.

CG-111. Do not recruit people into criminal money-movement schemes.

CG-112. Do not use Sparkle to launder proceeds of crime.

CG-113. Report suspected fraud promptly.

CG-114. Sparkle may freeze or restrict suspicious transactions pending investigation where its systems support such controls.

H. SPAM, MANIPULATION & PLATFORM ABUSE

CG-115. Do not mass-follow or mass-message users to manufacture engagement.

CG-116. Do not buy likes, comments, followers or views from prohibited sources.

CG-117. Do not use bots to manipulate trends.

CG-118. Do not coordinate fake reporting campaigns.

CG-119. Do not create fake engagement rings.

CG-120. Do not use automation to scrape or index user data beyond permitted interfaces.

CG-121. Do not overload Sparkle APIs or intentionally create denial-of-service conditions.

CG-122. Do not probe endpoints for vulnerabilities outside an authorised security programme.

CG-123. Do not bypass rate limits.

CG-124. Do not exploit referral rewards.

CG-125. Do not manipulate polls through coordinated fake accounts.

CG-126. Do not create deceptive trends through automated or coordinated spam.

CG-127. Do not evade content ranking restrictions by repeatedly re-uploading the same prohibited content.

CG-128. Do not use altered media to evade automated moderation.

CG-129. Do not abuse Ghost identities to create large-scale anonymous campaigns.

CG-130. Do not use multiple accounts to evade a restriction or ban.

CG-131. Do not interfere with another user's account, session or device.

I. CONTENT AUTHENTICITY & MISLEADING MEDIA

CG-132. Do not falsely present fabricated media as authentic evidence when doing so is likely to cause material harm.

CG-133. Clearly label satire, parody or fictionalised material where confusion is reasonably likely.

CG-134. Do not manipulate screenshots to falsely attribute statements to another person.

CG-135. Do not fabricate messages, payment receipts or official notices.

CG-136. Do not create fake Sparkle notices.

CG-137. Do not impersonate emergency services, government offices or universities.

CG-138. Do not use deepfakes to sexually exploit or defame a person.

CG-139. Do not remove context from media in a deliberately deceptive manner when it creates serious harm.

CG-140. Do not fabricate endorsements.

CG-141. Do not use AI-generated identities to conduct fraud or impersonation.

CG-142. Do not present AI-generated emergency information as verified fact.

CG-143. Where a synthetic-media label is required by Sparkle, users must not remove or obscure it.

J. DANGEROUS, ILLEGAL & VIOLENT CONDUCT

CG-144. Do not use Sparkle to plan or coordinate violent attacks.

CG-145. Do not issue credible threats of violence.

CG-146. Do not instruct users to commit serious crimes.

CG-147. Do not recruit for violent criminal activity.

CG-148. Do not celebrate or encourage real-world attacks where the content meaningfully facilitates further harm.

CG-149. Do not distribute instructions intended to facilitate serious wrongdoing where prohibited by law or Sparkle policy.

CG-150. Do not use Sparkle to coordinate theft or fraud.

CG-151. Do not facilitate trafficking or exploitation.

CG-152. Do not sell illegal goods through Sparkle.

CG-153. Do not publish content that creates a serious and imminent risk of physical harm.

CG-154. Contextual reporting, journalism, education and condemnation may be allowed where it does not facilitate wrongdoing.

CG-155. Sparkle may refer serious threats to competent authorities when legally appropriate.

K. SELF-HARM & SUICIDE

CG-156. Do not encourage another person to die or self-harm.

CG-157. Do not pressure a vulnerable person to self-harm.

CG-158. Do not provide content intended to facilitate self-harm in circumstances where it creates a serious risk.

- CG-159.** Do not romanticise or glorify suicide in a way that encourages imitation.
- CG-160.** Supportive discussion, recovery stories and prevention information may be allowed.
- CG-161.** Where a credible imminent safety concern is identified, Sparkle may use emergency safety processes.
- CG-162.** Do not weaponise self-harm threats to coerce another user.
- CG-163.** Do not use a crisis or safety feature to harass another person.
- CG-164.** Do not publish private medical information about a person claiming to be at risk without an appropriate safety basis.

L. ADULT CREATORS & MATURE CONTENT

- CG-165.** Adult creators must comply with Sparkle's current adult-content policy and all applicable law.
- CG-166.** Being an adult does not make every form of sexual content permissible.
- CG-167.** Creators may be required to use sensitive labels or age gates.
- CG-168.** Sensitive content may be excluded from Explore, recommendations, trends, promotional surfaces or push notifications.
- CG-169.** Sparkle may allow organic engagement on permitted sensitive content while limiting algorithmic amplification.
- CG-170.** Sparkle may impose distribution ceilings or eligibility rules for mature content.
- CG-171.** Creators must not use mature content to circumvent child-safety controls.
- CG-172.** Creators must not use sexual content to solicit prohibited transactions or exploitation.
- CG-173.** Creators must not use thumbnails or captions that bypass sensitive-content controls.
- CG-174.** Premium status never overrides Community Guidelines.
- CG-175.** High engagement never protects content from removal.
- CG-176.** Repeated attempts to upload prohibited adult content may escalate enforcement.

M. GHOST MODE & ANONYMOUS INTERACTION

- CG-177.** Ghost mode may hide a user's discoverability from ordinary search and recommendations.
- CG-178.** Ghost mode does not change the user's permanent internal account identity.
- CG-179.** Ghost comments may display as a Ghost identity while Sparkle retains the underlying author ID.
- CG-180.** Ghost likes and reactions may be hidden from public identity lists where the feature supports it.
- CG-181.** Ghost story viewing may hide the viewer's identity from the story owner where the feature supports it.
- CG-182.** Ghost search may reduce public visibility of search activity subject to Sparkle's privacy design.
- CG-183.** Ghost messages must remain subject to anti-abuse limits.
- CG-184.** Ghost mode must not be used to evade blocks or suspensions.
- CG-185.** Ghost users remain subject to reports and moderation.
- CG-186.** Sparkle may disclose Ghost identity to authorised personnel or competent authorities where lawful and necessary.
- CG-187.** Premium Ghost features do not create a right to harass anonymously.
- CG-188.** Users may report Ghost content even if they cannot see the underlying identity.
- CG-189.** Sparkle may limit, suspend or remove Ghost privileges for abuse.
- CG-190.** Ghost analytics should prefer aggregate insights over exposing another user's identity without consent.

N. REPORTING & APPEALS

- CG-191.** Users may report content or conduct they reasonably believe violates these Guidelines.
- CG-192.** Reports must not be knowingly false.
- CG-193.** Do not coordinate mass reports to punish lawful speech.

- CG-194.** Report the specific content or behavior when possible.
- CG-195.** Sparkle may limit reports that are clearly abusive or automated.
- CG-196.** Report count alone does not determine guilt.
- CG-197.** Independent evidence and severity matter.
- CG-198.** Serious content may be temporarily restricted while reviewed.
- CG-199.** Users whose content is removed should receive a reason where reasonably possible.
- CG-200.** Users may request review of eligible enforcement decisions.
- CG-201.** Appeals should identify the decision and provide relevant context.
- CG-202.** Repeated frivolous appeals may be rate-limited but should not eliminate legitimate appeal rights.
- CG-203.** Appeal outcomes should be recorded.
- CG-204.** Sparkle may reverse an incorrect decision.
- CG-205.** Enforcement can be increased if additional evidence is discovered.
- CG-206.** Safety-critical restrictions may remain in place during review.

O. SECURITY & VULNERABILITY REPORTING

- CG-207.** Do not exploit a Sparkle vulnerability to access another user's data.
- CG-208.** Do not test account takeover against real users.
- CG-209.** Do not deploy malware through Sparkle.
- CG-210.** Do not distribute credential-stealing links.
- CG-211.** Do not interfere with Sparkle infrastructure.
- CG-212.** Do not attempt to bypass authentication.
- CG-213.** Do not access private media without authorisation.
- CG-214.** Do not use leaked credentials.
- CG-215.** Report security vulnerabilities responsibly.
- CG-216.** Sparkle may maintain a separate vulnerability disclosure programme.
- CG-217.** Security testing may require explicit authorisation.
- CG-218.** Emergency containment may temporarily restrict accounts or sessions.

P. MARKETPLACE, PAYMENTS & COMMERCE

- CG-219.** Do not sell prohibited goods or services.
- CG-220.** Do not misrepresent price, availability, condition or ownership.
- CG-221.** Do not collect payments for goods you have no reasonable ability to deliver.
- CG-222.** Do not impersonate Sparkle Pay or a financial institution.
- CG-223.** Do not manipulate ratings or reviews.
- CG-224.** Do not threaten buyers or sellers.
- CG-225.** Do not use marketplace messaging for spam.
- CG-226.** Do not evade transaction fees or safety controls.
- CG-227.** Do not use Sparkle escrow to launder funds.
- CG-228.** Disputes may be subject to separate commerce terms.

Q. UNIVERSITIES, CAMPUSES & COMMUNITIES

- CG-229.** Do not target students or staff with coordinated harassment.
- CG-230.** Do not publish private disciplinary records without a lawful basis.
- CG-231.** Do not impersonate a university administration.
- CG-232.** Do not fabricate examination results or official notices.
- CG-233.** Do not organise violence at a campus.
- CG-234.** Academic debate is allowed.
- CG-235.** Campus criticism is allowed.
- CG-236.** Satire and student commentary are allowed subject to general rules.
- CG-237.** Do not dox students, lecturers or staff.
- CG-238.** Do not publish intimate material of students without consent.
- CG-239.** Do not use campus groups to coordinate criminal conduct.

R. COPYRIGHT & CREATOR RIGHTS

- CG-240.** Do not intentionally upload copyrighted material you have no right to distribute where prohibited by law or Sparkle policy.
- CG-241.** Do not claim another creator's work as your own.
- CG-242.** Respect valid copyright complaints.
- CG-243.** Commentary, criticism, quotation and lawful exceptions may apply.
- CG-244.** Sparkle may maintain a copyright notice-and-action process.
- CG-245.** Do not file fraudulent copyright claims to silence a competitor.

S. LIVE, STORIES & EPHEMERAL CONTENT

- CG-246.** Stories are subject to the same core Community Guidelines as permanent posts.
- CG-247.** Disappearing content is not exempt from moderation.
- CG-248.** Live broadcasts may be interrupted for serious violations.
- CG-249.** Live content may be reported in real time where the product supports it.
- CG-250.** Creators must not use live broadcasts to facilitate violence or exploitation.
- CG-251.** Sensitive live content may be age-gated or distribution-limited.
- CG-252.** Story replies remain subject to messaging and harassment rules.
- CG-253.** Ghost story viewing does not make prohibited content permissible.

T. PLATFORM EVASION & ENFORCEMENT INTEGRITY

- CG-254.** Do not create a replacement account to evade a permanent ban.
- CG-255.** Do not use a friend's account to continue banned activity.
- CG-256.** Do not disguise prohibited content to pass moderation.
- CG-257.** Do not alter images to bypass safety classifiers.
- CG-258.** Do not move prohibited activity from public posts to private messages to evade enforcement.
- CG-259.** Do not abuse appeals to delay an enforcement action indefinitely.
- CG-260.** Do not threaten Sparkle staff for making a policy decision.
- CG-261.** Do not publish private information about moderators or safety staff.
- CG-262.** Do not attempt to bribe or manipulate moderators.
- CG-263.** Do not impersonate a moderator to reverse an enforcement action.

7. ENFORCEMENT FRAMEWORK

Sparkle's enforcement system should be based on **confirmed behavior and risk**, not raw report totals. The same number of reports can mean very different things: one credible report about a severe violation may require immediate action, while fifty coordinated false reports may require no action against the target.

Recommended enforcement levels

E0 — No violation: Dismiss report; restore or leave content available; optionally penalise abusive reporting.

E1 — Education: Warning, policy explanation and/or safety prompt. Appropriate for minor first-time conduct.

E2 — Content action: Remove, restrict, label, age-gate, reduce distribution or temporarily hide the specific content.

E3 — Feature restriction: Temporarily restrict comments, messaging, posting, live, Ghost, following or other high-risk feature.

E4 — Temporary suspension: Disable account for a defined period; preserve account data and provide review where appropriate.

E5 — Long suspension: Use for repeated or serious confirmed violations; re-entry may require additional verification.

E6 — Permanent account disablement: Use for severe or repeated confirmed violations where continued access creates unacceptable risk.

E7 — Emergency containment: Immediate restriction for imminent safety, child exploitation, serious cyber abuse or other critical risk; subsequent review and lawful escalation.

Level	Typical pattern	Default response	Review
1	Minor confirmed violation	Warning or content action	Available for eligible actions
2	Repeated minor / first moderate	Strike + limited feature restriction	Available
3	Repeated moderate	Temporary suspension, e.g. 24h–7d	Available
4	Serious or repeated violations	7d–30d suspension or stronger restriction	Available
5+	Persistent confirmed violations	Long suspension or permanent disablement depending on severity	Appeal/review subject to category
Critical	Child sexual exploitation, severe non-consensual intimate media, credible imminent violence, major account compromise etc.	Immediate containment; permanent action may follow investigation	Expedited review where appropriate

Why no fixed “2 reports = warning / 10 = suspension / 20 = ban” rule? Because that system is vulnerable to coordinated false reports. Sparkle should instead score reports by credibility, independence, content severity, evidence, user history, prior confirmed violations, automation signals and whether the conduct is ongoing.

Examples of immediate escalation

- A credible report of child sexual exploitation may trigger immediate content restriction, account containment and specialist escalation.
- A credible non-consensual intimate-image report may trigger immediate media restriction while the case is investigated.
- A credible imminent violence threat may trigger immediate account or feature restriction.
- A security compromise may trigger session revocation, password reset and temporary account lockdown.
- A mass-report attack may trigger anti-abuse controls rather than punishment of the target.

8. REPORTING SYSTEM

Every major user-generated surface should have a Report action. The report flow should ask for a reason, optionally request evidence/context, prevent unnecessary exposure of the reported content, and create a case ID.

Recommended report categories

R-01. Child safety / sexual exploitation

R-02. Non-consensual intimate media

R-03. Threat or violence

R-04. Harassment or bullying

R-05. Hate speech / discrimination

R-06. Self-harm concern

R-07. Doxxing / privacy

R-08. Fraud / scam

R-09. Impersonation

R-10. Spam / manipulation

R-11. Sexual content

R-12. Graphic violence

R-13. Illegal goods or services

R-14. Copyright

R-15. Misinformation / deceptive media

R-16. Other

Report integrity

- Rate-limit repeated identical reports from the same account.
- Detect bursts of coordinated reports from newly created or linked accounts.
- Do not reveal the reporter's identity to the reported user except where law or an authorised process requires it.
- Do not expose private message content to unrelated users during review.
- Record report creation time, target content ID, category, relevant metadata and moderation outcome.
- Where a report is clearly malicious, Sparkle may restrict the reporter's reporting privileges.

9. APPEALS & USER REVIEW

An enforcement system that cannot correct its own mistakes is unsafe. Eligible decisions should provide a review route. A severe safety action can remain active while the review is pending.

Minimum appeal record

- Case/enforcement ID.
- Policy category.
- Action taken.
- Date/time.
- A concise reason.
- How to request review.
- Any deadline that applies.

- Outcome and, where appropriate, the basis for the outcome.

Appeal outcomes

- Upheld — enforcement remains.
- Modified — enforcement reduced.
- Reversed — content/account restored.
- Insufficient information — additional evidence requested.
- Escalated — specialist/legal/safety review.

10. CONTENT MODERATION ARCHITECTURE

Sparkle does not need to train its own AI model to start. The platform can integrate specialised text and media safety services and place Sparkle's own policy engine around them.

Recommended pipeline

Upload → quarantine/pending → automated classification → policy engine → publish / restrict / reject / human review → audit log → appeal.

Media

- Images: classify explicit sexual content, nudity, graphic violence, drugs, self-harm indicators and other selected categories.
- Videos: inspect representative frames and/or a vendor's video moderation capability rather than trusting only a thumbnail.
- Audio: optionally transcribe and classify speech where legally and technically appropriate.
- Thumbnails: treat them as presentation surfaces; a safe thumbnail must not override an unsafe underlying video.
- Re-uploads: hash or fingerprint content where appropriate to prevent repeated re-upload of already-prohibited material.

Text

- Classify harassment, threats, sexual solicitation, hate, self-harm encouragement, spam and other policy categories.
- Use context-aware classification rather than a simple banned-word list.
- Allow educational, journalistic, quoted or condemnatory use where the context supports it.
- For private messages, be transparent about automated safety processing and prioritise user reports, abuse prevention and high-risk safety mechanisms.

11. SENSITIVE MEDIA DISTRIBUTION MODEL

Sparkle may choose to permit some mature but non-prohibited content. The key product rule should be **distribution control, not automatic viral amplification**. A sensitive post may receive genuine engagement from eligible users while being excluded from Explore, Trends, recommendations, promotional boosts or broad push notifications.

Tier	Example	Default treatment
S0 Normal	General-audience photo/video	Normal recommendation eligibility
S1 Sensitive	Mature/suggestive but permitted content	Label/warning; reduced recommendation
S2 Restricted	High-sensitivity content allowed only to eligible users	Age gate; no broad discovery; no promotional amplification
S3 Prohibited	Explicit prohibited sexual material, non-consensual intimate media, CSAM, etc.	Block/remove; enforce; possible escalation

A fixed “1,000 likes” ceiling is not recommended as a legal or safety rule. A distribution ceiling should control algorithmic amplification, not necessarily erase genuine engagement from users who are permitted to see the content.

12. GHOST PRIVACY POLICY

Ghost is a privacy feature, not an accountability bypass. A Ghost user can be hidden from public search, recommendations or identity displays while Sparkle retains a stable internal user ID for security, moderation, fraud prevention and lawful processes.

Ghost actions may include

- Ghost search
- Ghost story viewing
- Ghost comments
- Ghost likes/reactions
- Ghost following
- Ghost messages
- Ghost profile/discoverability
- Scheduled Ghost sessions
- Ghost analytics
- Ghost identity duration

Ghost safety requirements

- A Ghost identity must still map to a permanent internal user ID.
- Blocking a user must remain effective against Ghost abuse.
- Ghost messages must have rate limits and reporting controls.
- Ghost activity must not reveal a person's identity to ordinary users unless the feature explicitly provides voluntary disclosure.
- Sparkle may reveal or internally associate the identity for authorised safety, legal or security purposes.
- Premium Ghost features do not create a right to harass anonymously.
- Users may report Ghost content even if they cannot see the underlying identity.
- Sparkle may limit, suspend or remove Ghost privileges for abuse.
- Ghost analytics should prefer aggregate insights over exposing another user's identity without consent.

13. CHILDREN & AGE SAFETY

Sparkle should design age handling as a risk-control system rather than relying solely on a birthday field. Kenyan law imposes specific obligations around children's personal data and online abuse. The Data Protection Act addresses children's data, including age-verification/consent mechanisms, and the Children Act includes online abuse concepts such as cyberbullying, grooming, solicitation, cyber enticement and cyber harassment.

Minimum product controls

- Do not allow child accounts to receive prohibited sexual content.
- Restrict adult discovery and messaging toward children where appropriate.

- Apply heightened reporting priority to child-safety reports.
- Do not use children's data for unrelated purposes.
- Use age-appropriate defaults and explain privacy choices clearly.
- Escalate credible exploitation reports to the designated child-safety workflow.

14. PRIVACY & DATA PROTECTION

Sparkle may process account, device, location, media, communications and behavioral information depending on the features a user activates. The Privacy Policy must state the actual categories, purposes, retention periods, legal bases and rights mechanisms used by the deployed system.

Operational requirements

- Maintain a data inventory and data-flow map.
- Identify Sparkle's role as data controller and any processor relationships.
- Use data minimisation and purpose limitation.
- Define retention schedules.
- Restrict internal access by role.
- Encrypt data in transit and protect sensitive data at rest.
- Maintain audit logs for privileged access.
- Provide data-subject rights workflows.
- Assess cross-border transfers and vendor safeguards.
- Maintain a breach response plan and regulator notification workflow.

The ODPC states that data subjects have rights including information, access, objection, correction and deletion of false or misleading data. ODPC guidance also addresses controller/processor registration and breach handling. The exact obligations depend on Sparkle's legal structure and processing activities.

15. SECURITY & BREACH RESPONSE

A Community Guidelines document cannot substitute for a security programme. Sparkle should maintain incident response procedures covering account takeover, database compromise, media exposure, credential leakage, payment fraud and vendor compromise.

Suggested response

1. Detect and classify the incident.
2. Contain affected accounts, sessions, keys or services.
3. Preserve relevant evidence.
4. Assess affected data and users.
5. Remediate the vulnerability.
6. Notify appropriate internal owners.
7. Assess regulator notification obligations.
8. Communicate with affected users where required.
9. Rotate secrets and invalidate compromised tokens.
10. Conduct a post-incident review and update controls.

16. LEGAL & REGULATORY RISK REGISTER

Risk	Likelihood	Impact	Sparkle control
Child sexual exploitation	Low frequency / critical	Extreme	Immediate removal, account containment, specialist escalation, evidence preservation and lawful reporting.
Non-consensual intimate media	Medium	High	Pre-publication media moderation, rapid report route, takedown, strike and escalation.
Data breach	Medium	Extreme	Security programme, access controls, encryption, incident response, breach assessment and regulator workflow.
Doxxing/privacy harm	Medium	High	Privacy report, fast restriction, data minimisation, access controls.
Cyber harassment/threats	Medium	High	Text moderation + reports + rapid safety response.
False/mass reporting	High	Medium	Report-rate controls, independence analysis and reporter-abuse detection.
Over-removal / censorship	Medium	High	Context-aware policy, proportionate enforcement and appeals.
Defamation disputes	Medium	High	Complaint/review process, evidence preservation, legal escalation and careful notice handling.
Account takeover	Medium	High	Strong authentication, session controls, anomaly detection and recovery.
Ban evasion	High	Medium	Stable identity signals, device/account risk controls and re-entry checks.
Algorithmic amplification of sensitive content	Medium	High	Sensitivity tiers and recommendation exclusions.
Vendor moderation outage	Medium	High	Fail-closed for critical categories, queueing, retries and manual emergency controls.
Moderation false positive	Medium	Medium/High	Appeals, confidence thresholds and human review for high-impact cases.

17. MODERATION DATA MODEL (REFERENCE DESIGN)

The following is a conceptual model for Sparkle's existing Node/Express/MySQL architecture. It is not a requirement to use these exact names.

moderation_cases

case_id, target_type, target_id, reporter_id

category, severity, classifier_scores

status, action, created_at, reviewed_at

appeal_status, final_reason

user_moderation

user_id, strike_count, risk_score

restriction_level, suspended_until

last_enforcement_at

content_safety

content_id, media_type, moderation_status

sensitivity_tier, classifier_version

decision, decision_reason, reviewed_at

identity

user_id, username, discoverability

ghost_mode, ghost_until, account_status

18. AUTOMATED MODERATION WITHOUT YOUR OWN AI

Sparkle can begin with third-party safety classifiers. The vendor supplies signals; Sparkle supplies the policy decision. Do not allow a vendor score by itself to permanently ban an account.

Recommended decision pattern

Classifier → confidence → category → policy rule → severity → account history → action → audit log → appeal.

Fail-safe rules

- If a critical moderation provider is unavailable, quarantine or delay high-risk media rather than publishing blindly.
- Cache only what is necessary and avoid retaining raw sensitive media beyond defined needs.
- Version moderation classifiers so old decisions remain explainable.
- Keep a human override for high-impact decisions.
- Test adversarially: cropped images, re-encoded video, screenshots, altered captions, emojis, slang and coded language.

19. PROPORTIONALITY & CONSTITUTIONAL BALANCE TEST

Before introducing a rule that significantly limits participation, Sparkle should ask:

1. Is there a legitimate safety, privacy, security or platform-integrity purpose?
2. Is the rule clear enough for users to understand?
3. Is the restriction based on conduct/content rather than protected identity?
4. Is the measure reasonably connected to the risk?
5. Could a less restrictive action achieve the same safety outcome?
6. Is the action proportionate to the severity and likelihood of harm?
7. Is there a route to correct mistakes?
8. Does the rule apply consistently?
9. Does the rule protect the rights and reputation of other users?
10. Does the rule create an unnecessary barrier to lawful expression?

20. USER NOTICE TEMPLATES

Content removed

Your content was removed because Sparkle determined that it violated the Community Guidelines under [CATEGORY]. You may request a review if this decision is eligible for appeal. Case ID: [CASE-ID].

Content temporarily restricted

Your content is temporarily restricted while Sparkle reviews a safety report. This is not, by itself, a finding that you violated the rules. Case ID: [CASE-ID].

Warning

Sparkle found a policy violation involving your account. Continued violations may result in feature restrictions or

suspension. Review the relevant rule and request review if you believe the decision is incorrect.

Suspension

Your account has been temporarily suspended because of a confirmed or high-severity policy issue. Reason: [CATEGORY]. Duration: [DURATION]. Review: [APPEAL LINK/IN-APP ROUTE].

Appeal outcome

We reviewed your appeal. Decision: [UPHELD/MODIFIED/REVERSED]. Reason: [REASON].

Ghost activity notice

This activity was performed by a Ghost account. Sparkle may retain the underlying account identity for safety, security and lawful purposes.

21. OFFICIAL SPARKLE IDENTITY & CONTACTS

Verified/public identifiers should be configured before release. This draft uses the project identity supplied for Sparkle:

Sparkle Official — @sparkleofficialaccount — in-app system account.

Sparkle Team — official policy owner.

Founder & CEO — Don Babu.

Public website: TO BE CONFIGURED — no verified public Sparkle domain was located during this research.

Support email: TO BE CONFIGURED — do not publish a guessed address.

Privacy/Data Protection email: TO BE CONFIGURED.

Law-enforcement request channel: TO BE CONFIGURED.

Child-safety escalation channel: TO BE CONFIGURED.

Security/vulnerability channel: TO BE CONFIGURED.

Recommended in-app links to implement: /community-guidelines, /terms, /privacy, /safety, /report, /appeal, /security, /child-safety, /legal-requests. These are implementation route recommendations, not currently verified public URLs.

22. LAW, REGULATORY & OFFICIAL REFERENCE LINKS

The following official sources were used to shape this draft. They are included as clickable references so the final policy team can verify the exact current text before publication.

- [Constitution of Kenya, 2010 — Kenya Law](#)
- [Computer Misuse and Cybercrimes Act — Kenya Law](#)
- [Computer Misuse and Cybercrimes \(Amendment\) Act, 2025 — Kenya Law](#)
- [Data Protection Act, 2019 — Kenya Law](#)
- [Data Protection \(General\) Regulations, 2021 — Kenya Law](#)
- [Children Act, 2022 — Kenya Law](#)
- [Sexual Offences Act — Kenya Law](#)
- [Defamation Act — Kenya Law](#)
- [Office of the Data Protection Commissioner — Data Subject Rights](#)
- [ODPC — Guidelines](#)
- [ODPC — Registration Portal](#)
- [ODPC — Guidance Note for Data Protection Policies \(2026\)](#)

23. PUBLICATION CHECKLIST BEFORE SPARKLE GOES LIVE

- 1. Have a Kenyan advocate review the final Terms, Privacy Policy and Community Guidelines.
- 2. Confirm Sparkle's legal entity, registered address and official contact channels.
- 3. Confirm whether Sparkle must register as a data controller/processor with the ODPC based on its actual processing.
- 4. Appoint a responsible privacy/data-protection owner.
- 5. Complete a data inventory and retention schedule.
- 6. Document all third-party processors and international transfers.
- 7. Implement report categories and case IDs.
- 8. Implement appeal and moderation audit logs.
- 9. Implement media quarantine before publication for high-risk categories.
- 10. Implement text moderation and abuse detection.
- 11. Implement child-safety escalation.
- 12. Implement non-consensual intimate-media response.
- 13. Implement law-enforcement request handling.
- 14. Implement security incident response and breach workflow.
- 15. Implement account takeover controls.
- 16. Implement anti-mass-reporting controls.
- 17. Implement ban-evasion controls.
- 18. Implement Ghost-mode abuse controls.
- 19. Write and publish the Privacy Policy.
- 20. Write and publish the Terms of Service.
- 21. Publish Community Guidelines in-app.
- 22. Provide a visible Report button.
- 23. Provide a visible Appeal option where eligible.
- 24. Test every moderation decision for false positives and false negatives.
- 25. Conduct red-team testing before public launch.
- 26. Run a legal and policy review whenever a new feature collects or exposes personal data.
- 27. Review this document at least quarterly or after a material legal/product change.

24. GOVERNANCE & REVIEW CADENCE

Policy review should occur at least quarterly, after any material Kenyan legal/regulatory change, after a major safety incident, after launching a new content surface, or after evidence that the rules are systematically over-removing or under-removing content.

Required governance records

- Policy version history.
- Moderation taxonomy and classifier versions.

- Enforcement statistics.
- Appeal reversal rate.
- False-positive and false-negative sampling.
- Child-safety incident statistics, handled with strict privacy controls.
- Data-breach and security incident records.
- Material legal/regulatory changes.
- Vendor risk assessments.
- Annual or periodic privacy/security risk assessment.

25. FINAL POLICY POSITION

Sparkle's objective should not be to remove everything that is controversial. It should be to create a platform where lawful expression, privacy and community participation can coexist with strong protection against exploitation, harassment, fraud, child abuse, non-consensual intimate media, serious threats and security abuse.

The strongest production design is therefore risk-based moderation + proportionate enforcement + stable identity + privacy controls + automated safety tooling + human review for difficult cases + meaningful appeals.

This document is a detailed product-policy draft. It should be treated as a foundation for legal review, engineering implementation and operational testing—not as a substitute for a lawyer's advice or for the final Terms of Service and Privacy Policy.

APPENDIX A — VERSION HISTORY

v1.0 — 21 August 2026 — Initial comprehensive Kenya-focused Community Guidelines draft. Prepared with current-source research and Sparkle project requirements supplied for this document.

APPENDIX B — APPROVAL RECORD

Role	Name	Signature / approval	Date
Founder & CEO	Don Babu	_____	_____
Policy Owner	Sparkle Team	_____	_____
Legal Reviewer	TO BE APPOINTED	_____	_____
Privacy / DPO	TO BE APPOINTED	_____	_____
Safety Lead	TO BE APPOINTED	_____	_____